

THE WYOMING
MILITARY ESTABLISHMENT.

Twenty-Fourth Regiment,
Connecticut Militia.



AN ADDRESS

before

The Tioga Point Historical Society

delivered December 3rd, 1901, by

Hon. CHARLES TUBBS.

Honorary Member Tioga Point Historical Society.

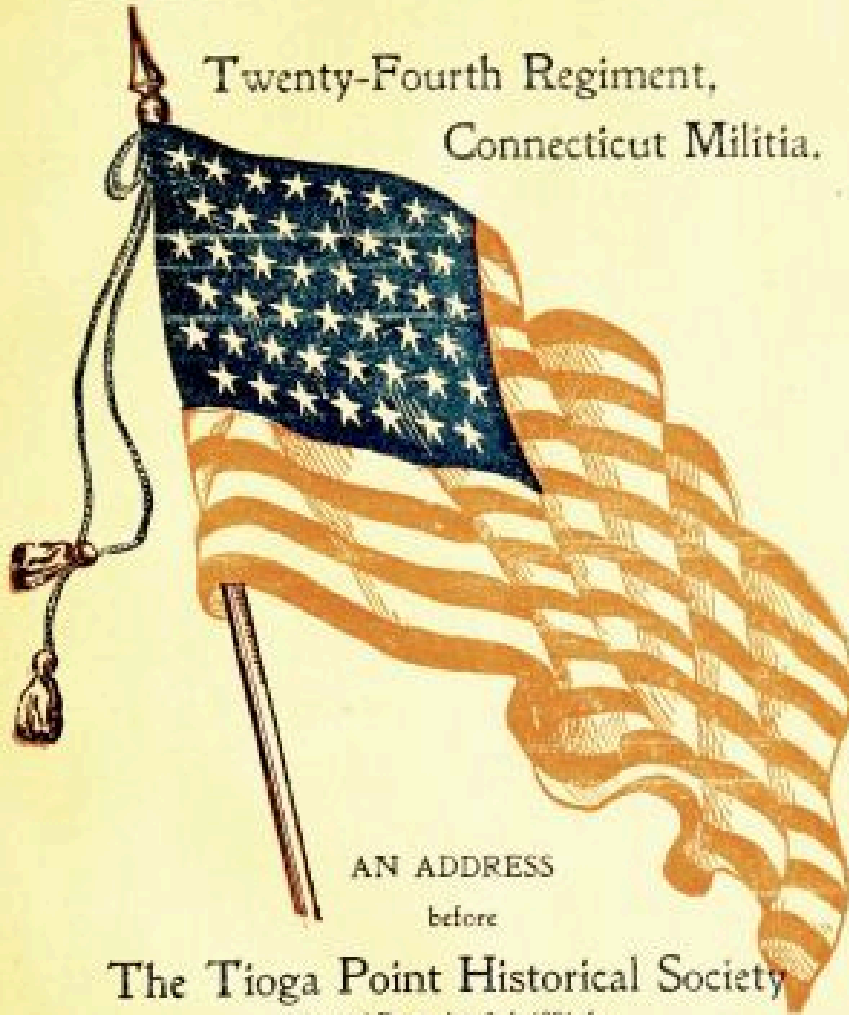
Corresponding Member Wyoming Historical & Geological Society.

Athens, Penna.

1903.

THE WYOMING
MILITARY ESTABLISHMENT.

Twenty-Fourth Regiment,
Connecticut Militia.



AN ADDRESS
before

The Tioga Point Historical Society

delivered December 3rd, 1901, by

Hon. CHARLES TUBBS.

Honorary Member Tioga Point Historical Society.

Corresponding Member Wyoming Historical & Geological Society.

Athens, Penna.

1903.

The Project Gutenberg eBook of The Wyoming Military Establishment. A History of the Twenty-fourth Regiment of Connecticut Militia

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Wyoming Military Establishment. A History of the Twenty-fourth Regiment of Connecticut Militia

Author: Charles Tubbs

Release date: September 26, 2019 [eBook #60361]

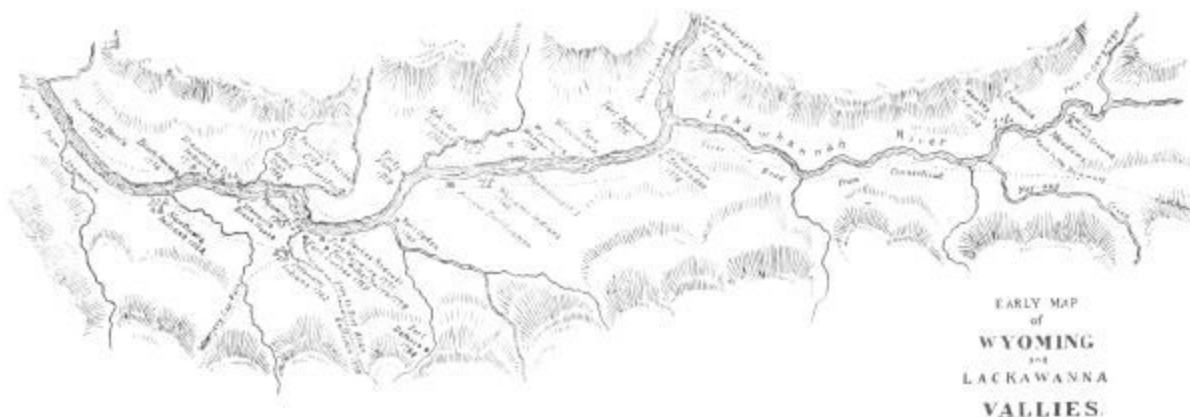
Most recently updated: October 17, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/60361

Credits: Produced by Graeme Mackreth and The Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK THE WYOMING
MILITARY ESTABLISHMENT. A HISTORY OF THE TWENTY-
FOURTH REGIMENT OF CONNECTICUT MILITIA ***



EARLY MAP OF WYOMING AND LACKAWANNA VALLIES.

The Wyoming Military Establishment.

A HISTORY

—OF THE—

TWENTY-FOURTH REGIMENT

—OF—

CONNECTICUT MILITIA.

An Address

before

The Tioga Point Historical Society

delivered December 3rd, 1901, by

Hon. CHARLES TUBBS,

Honorary Member Tioga Point Historical Society.
Corresponding Member Wyoming Historical & Geological Society.

Athens, Penna.
1903.

LIEUTENANT LEBBEUS TUBBS,
PRIVATE SAMUEL TUBBS,
LIEUTENANT-COLONEL GEORGE DORRANCE.

TO THE MEMORY OF THESE, MY ANCESTORS,
MEMBERS OF THE TWENTY-FOURTH REGIMENT,
I DEDICATE THIS STUDY
OF COLONIAL AND REVOLUTIONARY EVENTS,
IN WHICH THEY PERFORMED A PART.

ILLUSTRATIONS.

MAP OF WYOMING VALLEY,

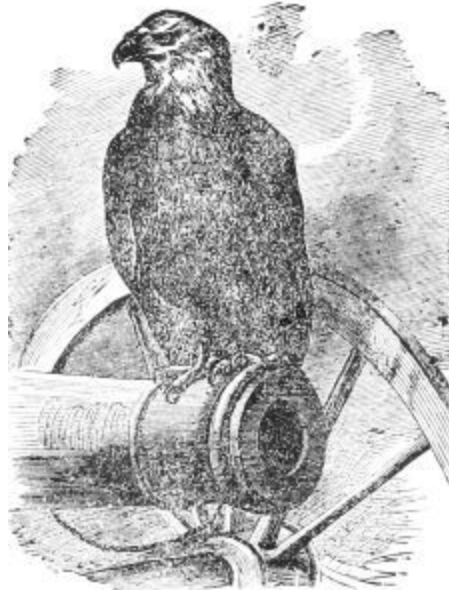
LAZARUS STEWART'S BLOCK HOUSE,

FORTY FORT IN 1778,

PITTSTON FORT,

WYOMING MONUMENT,

The plates from which the above illustrations were printed were kindly
loaned by the Wyoming Historical and Geological Society.



ATHENS GAZETTE,
Athens, Pa.

The Wyoming Military Establishment.

Alsace-Lorraine is a conquered province. The flag of Germany floats over it. Within the memory of most of us it was an integral part of France. At the time of the conquest, no heart of all its people went willingly to the side of the victor.

We are met to-day in Pennsylvania. Yet for years, in the eighteenth century the soil beneath our feet, and five thousand square miles of adjacent territory, inside the present limits of Pennsylvania, was an integral part of the State of Connecticut. It was settled by Connecticut people, was under Connecticut institutions, was governed by Connecticut laws. It was a Connecticut town; it was a Connecticut county; had a judge, a sheriff, other officers, and sent representatives to the Connecticut legislature.

Pennsylvania made conquest of it. No heart of all the people of this Connecticut town went willingly to the side of the victor. The Alsatians were no more stunned, at being forcibly wrenched from their allegiance to

the flag they loved, than were the Connecticut people who had settled a town of their own in the heart of Pennsylvania.

How did this cataclysm befall? I will tell you. It all came of the ignorance or carelessness of a King. In 1620 King James I. of England granted a Charter to the Plymouth company for the ruling of New England in America. The charter covered North America from the fortieth to the forty-eighth degrees of north latitude, and from the Atlantic to the Pacific oceans. The Plymouth Company proceeded to sub-divide its territory. In 1631 it granted a charter to the Connecticut Colony which covered the space between the forty-first and forty-second degrees of north latitude "and from the Narragansett river on the east to the South Sea on the west throughout the main lands." The South Sea was the Pacific Ocean. In 1662 King Charles II. gave a new charter to Connecticut confirming the act of the Plymouth Company. Nineteen years later this same King in the grant of Pennsylvania to William Penn, included a portion of the same territory, already given by him to Connecticut.

The ignorance or carelessness of King Charles, in due time bore a rich harvest of strife and bloodshed. Under the Connecticut charter (which was the older) my ancestors, and perhaps yours, came into this valley of the Susquehanna, and sat themselves down. Under the Pennsylvania charter (which was the younger) came sheriffs, and armed men, to drive them off. On the tongues of men this disputed section was known as Wyoming. In the statute book it is called Westmoreland.

Having explained how the Connecticut people under a claim of right, built up a government within the present boundaries of Pennsylvania, I have said all I desire to say on that subject. It explains how a part of what is now Pennsylvania was really a part of Connecticut in the last years of our Colonial history, and in the first years of our history as an independent nation—from 1774 to 1783.

This Twenty-fourth regiment of Connecticut Militia was organized on that part of the soil of Pennsylvania which was known as the Wyoming region, and in that region it performed its deeds, and lived its organic life.

I am aware that this explanation is quite unnecessary. I am aware that the Society that listens to me contains many descendants of the men who made the history I am about to relate. I am aware that the great-grandchildren of

Captains Bidlack, Franklin, Spaulding, and Whittlesey here reside. I know that descendants of the Buck, Gore, Mathewson, Satterlee, Stevens and Tozer families abound in this old town. A writer who knows your community better than I do could mention others.

I have been attracted to the history of the Twenty-fourth regiment of Connecticut Militia because in all the histories it has received so little attention. Mr. Chapman, in his "Sketch of the History of Wyoming," (1830) says: "The whole body of the citizens was formed into a militia." (p. 102). He does not say it was a regiment nor designate it by its number. Col. Stone, in his work entitled, "Wyoming and its History," (1841), alludes to it in the phrase, "a regiment of militia being organized," (p. 202), but does not state its number nor give it further attention. Charles Miner, in his "History of Wyoming in a Series of Letters," (1845), gives many facts, but notices only six of the ten companies of which the regiment was composed and details only the organization of those companies as it was in 1775. George Peck, in his "Wyoming: its history, stirring incidents, and romantic adventures," (1858), devotes to it a passing allusion in the words, "a regiment of militia having been established." (p. 28). Stewart Pearce does not allude to the Twenty-fourth regiment at all in his "Annals of Luzerne," (1866), but does mention five of its companies. (p. 34) Steuben Jenkins, in his "Historical Address at the Monument," (1878), mentions its existence (p. 17), and at another place enumerates seven of its companies. (p. 34) Horace Edwin Hayden, in his monograph entitled, "Major John Garret; a forgotten hero of the Massacre of Wyoming," (1895) explains the existence of the regiment, credits it with nine companies, and gives the changes of the officers made in 1777.

In my judgment, the services of this regiment were of more importance than have been accorded them by the historians. I shall seek to arrange those already well known, into a comprehensive whole, to show their relation to other events, and to add some facts not hitherto brought to light.

The Wyoming community was isolated in its situation. It was seventy miles from it to the settlements on the Delaware; it was sixty miles to Fort Augusta; to the north and to the west, was a howling wilderness. This wilderness was filled with a savage Indian population. A continual fight was waged with the proprietaries of Pennsylvania.

The settlement, which became permanent, was begun in 1769. It was a self-governing community. It kept a record of its official acts. In 1772 it was voted, "That each and every settler should provide himself with a flint lock and ammunition, and continue to guard around the threatened plantations until further notice."^[1] That was the first step—individual action, every man defend his own castle. This did not prove effectual. Organization was needed. That was the second step in the evolution. It took time to bring it about—perhaps a year. At a meeting of the inhabitants held March 22, 1773, it was voted: "That the Comtee of settlers be Desired to send to the several towns or to their Comtee. Requiring them to Call all the Inhabitants in Each of ye said towns to meet on Thursday Next at five a Clock in ye afternoon of sd Day in some Convenient place in sd town, and that they then Chouse one Person in Each of sd towns as an officer to muster them, & so that all are oequipt according to Law with fire arms, and ammunition, and that they Chuse two Sergants & a Clerk & that the said Chieff officer is Hereby Commanded & Directed to Call ye Inhabitants together once in 14 Days for ye future until this Company orders otherwise & that in case of an allarm or ye appearance of an Enemy he is Directed to call ye sd Inhabitants together & stand for ye Defense of ye sd towns & Settlements without further orders."^[2] In speaking of these preparations Miner says: "If the splendid uniform, the glittering bayonet, the evolution rapid and precise, with the imposing band of music, did not grace their trainings, there was yet upon the ground the strong banded old French musket, the long duck shooting piece, and more efficient than either the close drawing rifle, little known in New England, but becoming familiar on the banks of the Susquehanna." Trainings once in fourteen days! They certainly believed in the strenuous life. Those trainings were not holidays. They were serious preparation for impending warfare.

In January. 1774, the Wyoming settlements which had grown to a population of 1922 souls,^[3] were taken official notice of by the legislature of Connecticut which incorporated them as the town of Westmoreland. Wyoming and Westmoreland may henceforth be regarded as interchangeable terms.

The next step in the evolution of the military establishment had its origin at the second town meeting after the incorporation, which was held on the 12th day of April, 1774. The town, by a vote, applied for the establishment

of a regiment.^[4] For some reason the legislature was slow to act. It may have been for the want of a representative in the law making body. The town, however, did not neglect to keep itself in a state of preparedness. They kept everlastingly at it. At the fourth town meeting held that year "Votes were passed to form themselves into companies in a military way,"^[5] each district in Westmoreland to be a company and Zebulon Butler, Esq., Major Ezekiel Pierce and Mr. John Jenkins were appointed a committee to repair to the several districts and lead each company to a choice of officers.

From this it is clear that the officers were chosen by a vote of the men in each company. The subsequent "establishment" of the rank of officers by the Connecticut Assembly was but a ratification of what had already been done by vote of the men.

It was more than a year after the action of the town meeting asking for the legal organization of a regiment before the legislature acted upon the subject. At May session, 1775, it enacted "That the town of Westmoreland shall be one entire regiment distinguished and called by the name of the Twenty-fourth regiment and shall be under the same rules and orders, and have the same powers, privileges and advantages as other regiments of this Colony by law have."^[6]

One of these advantages was the promise of six pence for half day training and twelve pence for whole day training, and this to be paid out of the Colony treasury.

The regiment was assigned to the sixth brigade, Connecticut State Militia, commanded by Brig. Gen. Oliver Wolcott. The organization was begun by the "establishment" of the regimental officers at the same session. Zebulon Butler was made Colonel; Nathan Denison, Lieutenant Colonel; William Judd, Major.^[7]

Zebulon Butler, the newly elected colonel, born at Lynne. Conn., 1731, was no novice in the military service. In the French and Indian war he was Ensign in Captain Andrew Ward's 2 company of the 4 Conn. Regt. in 1755-6-7. He was Lieutenant in Captain Timothy Mather's company of the 3 Regt. in 1758. He was Captain in the 4th and 1st regiments in 1759, 1760 and 1761.^[8] He had served seven enlistments. The territorial range of his

service extended from Crown Point on the north to Havana on the south. When elected Colonel his home was in Wilkes-Barre.

Nathan Denison, the newly elected Lieutenant Colonel, born in Conn., 1741, had seen service in the French and Indian war as a private in Col. Eleazar Fitch's 3d Conn. Regt. His services extended from May to November, 1758. His home was in Kingston.

Speaking of these two men Miner says: "Nature never formed two excellent men in more distinct contrast. Butler polished in manner, quick in perception, vehement and rapid in execution: Denison, plain though courteous, slow to speak, as careful to consider, cool and firm, if not alert in action. They were the two great and acknowledged leaders in Westmoreland."^[9]

William Judd, the newly elected Major, does not seem to have had any military experience outside of the militia.

The accessible records are silent about the progress made with the regiment during the summer of 1775, but it is fair to assume that the newly commissioned field officers did not neglect their duty in perfecting their organization and in training their men.

At the October session of the Connecticut legislature the election of the officers of nine of the companies were ratified. They were as follows:^[10]

First (Lower Wilkes-Barre) Company, Stephen Fuller, Captain; John Garret, Lieutenant; Christopher Avery, Ensign.

Second (Kingston) Company, Nathaniel Landon, Captain; George Dorrance, Lieutenant; Asahel Buck, Ensign.

Third (Plymouth) Company, Samuel Ransom, Captain; Perrin Ross, Lieutenant; Asaph Whittlesey, Ensign.

Fourth (Pittston) Company, Solomon Strong, Captain; Jonathan Parker, Lieutenant; Timothy Keyes, Ensign.

Fifth (Hanover) Company, William McKarachan, Captain; Lazarus Stewart, Jr., Lieutenant; Silas Gore, Ensign.

Sixth (Upper Wilkes-Barre) Company, Rezin Geer, Captain; Daniel Gore, Lieutenant; Matthias Hollenback, Ensign.

Seventh (Exeter) Company, Stephen Harding, Captain; Elisha Scovill, Lieutenant; John Jenkins, Jr., Ensign.

Eighth (Lackaway) Company, Eliab Farnham, Captain; John Shaw, Lieutenant; Elijah Winters, Ensign.

Ninth (Up the River) Company, James Secord, Captain; John De Pui, Lieutenant; Rudolph Fox, Ensign.

Some of these officers had seen service as soldiers in the French and Indian War.^[11] Captain Eliab Farnham, of the Lackaway Company, had done a tour of duty lasting twenty-five weeks in 1758 in Capt. Nathan Whiting's Company, 2d Conn. Regt. Lieut. Elisha Scovill had served 32 weeks in 1759 in Capt. Amos Hitchcock's Company in the seventh Connecticut regiment.

Lieutenant Jonathan Parker had served 34 weeks in 1761 in the third company of the First Conn. Regt. commanded by Major David Baldwin.

The citizen liable to serve in the Connecticut militia was a man, between 16 and 50 years of age, but for specified reason many were exempt from the service.^[12]

There was an almost immediate call for all the skill and ability of the newly commissioned officers not only in the training field, but in the arena of actual war. The Governor of Pennsylvania had made up his mind to completely destroy the Connecticut settlement at Wyoming. Wyoming was within the Pennsylvania county of Northumberland of which William Cook was Sheriff. William Cook, under pretense of serving sundry writs at Wyoming, took with him an armed force of 700 men under the command of Colonel William Plunket. He called it a "posse."

This force left Northumberland early in December, 1775, marching up the west side of the river over the almost impassable roads. The supplies for the expedition were loaded into boats. Progress was slow, as the boats had to be propelled against the current, encumbered as it often was at that season of the year by floating ice. December 20th, Col. Plunket was at Nescopeck Creek, nineteen miles below the south eastern extremity of the valley. His progress now was closely watched by scouts. On Saturday, the 23d he arrived at Harvey's landing, one-fourth of a mile below the mouth of

Harvey's Creek, where he landed, unloaded his boats, and encamped for the night.

What preparation had been made to receive the invader? On this same Saturday Col. Zebulon Butler mustered the newly formed Twenty-fourth regiment. He also collected all the old men and boys who did not belong to the ranks of the regiment and armed them the best he could. In number, his force thus made up, was about four hundred. The two armies spent the night within a half mile of each other. From this point Col. Butler sent out a flag to Col. Plunket, in charge of Lieutenant Garret, inquiring the object of the invasion. Col. Plunket's reply was that he came on a peaceful errand, simply to serve some Pennsylvania writs at Wyoming.

On Sunday morning. Col. Butler left Ensign Mason F. Alden^[13] with 18 men on the ground where he had spent the night. At the same time he sent Capt. Lazarus Stewart^[14] of the Hanover Company, with 20 men across the river to the east side above the Nanticoke Falls to prevent the enemy from landing, should they attempt to do so. He then, with the main body of his force, retreated about one mile up the river to a place where a natural defence existed. This consisted of a ridge of rocks projecting about one-half a mile south easterly from the Shawanese mountain to the river. Near the river it was 1 or 2 feet high, but as it ran back toward the mountain it was of great height. Wherever there were breaks in this natural rampart, Butler's men filled in the space with logs and stones. Behind this breastwork the Twenty-fourth regiment and its co-operating forces were stationed. About 11 o'clock Alden and his men became conscious that the enemy was moving, and they withdrew. They announced the approach of the enemy to Col. Butler and joined him behind the fortification. When the enemy advanced it was met with a fusilade of shots along the whole line, killing one man, wounding others and throwing the whole force into the utmost confusion. Without firing a shot Col. Plunket withdrew to the camp at Harvey's Creek.

Late in the afternoon the enemy brought two of its boats by land from Harvey's landing above the Nanticoke Falls. At night fall they were loaded with soldiers and rowed across the river. When they attempted to land they were fired upon by Captain Stewart and his men, who lay in ambush upon the bank, killing one man, and wounding others. The attempt to land was given up and the boats and their cargoes floated down through the rapids

and were safely moored at Harvey's landing. Thus ended the events of the day.

On Christmas Day Col. Plunket renewed the attack on the breastwork. He divided his forces into two divisions. One division assailed the fortification in front, while the other attempted a flanking movement on Col. Butler's right. This was promptly met and repelled. The battle lasted nearly all day, but the enemy, baffled at all points, finally withdrew. The invasion known by Col. Plunket's name was at an end. Eight or ten men on each side were killed and many wounded.^[15]

The battle with Plunket had made the officers and men of the regiment painfully conscious of their lack of equipment. Powder! How could they get powder? Offer a reward for it? That was what they did at a town meeting, March 10, 1776—two and a half months after the battle. "Voted that the first man that shall make fifty weight of good salt peter, in this town, shall be entitled to ten pounds lawful money, to be paid out of the town treasury."^[16]

Patriotism and this bounty no doubt produced an effect, as witness the following: "Mrs. Bethiah Jenkins says. The women took up their floors, dug out the earth, put it in casks, and ran water through it. Then took ashes in another cask and made lye—mixed the water from the earth with weak lye, boiled it, set it out to cool, and the salt peter rose to the top. Charcoal and sulphur were then used, and powder produced."^[17]

In May, 1776, John Jenkins, representative to the legislature, obtained leave for the selectmen to erect a powder mill in Westmoreland, but I can not learn that any mill was ever built.^[18]

In July of the same year the Council of Safety at Hartford "Voted that the Selectmen of Westmoreland may receive at Messrs. Elderkin & Wales mill, not exceeding 200 pounds of gun powder: they to account to the Colony therefor at the price of 5s, 4d per lb."^[19]

Col. Butler, in a letter to Roger Sherman, dated August 6, 1776, speaks of being in want of arms, "as those 80 guns taken from our people at Warrior Run have not been returned."^[20]

The Continental Congress the next year undertook to aid in supplying these wants, as witness the following action April 11: "Resolved, that 175 fire arms, either musquets or rifles, 200 wt. powder, 800 wt. lead, and 500 flints be sent to the town of Westmoreland, on the east branch of the Susquehanna river, to the care of Colonel Nathan Denison, to be used by the malitia there, for the defense of the said town, if necessary: the arms to be returned when the service there will admit of it."^[21]

I am telling the story of a regiment whose fortunes were profoundly affected by the Revolutionary War. The men of which it was composed were intense rebels against the authority of England. Therefore when the Congress on the 23d of August, "Resolved, That two companies on the Continental Establishment be raised in the town of Westmoreland"^[22] it responded with an enlistment of 82 men in each company. Captain Samuel Ransom, Lieutenant Perrin Ross, Ensigns Asahel Buck and Matthias Hollenbeck, with others, were elected as officers. I mention these because they were officers in the Twenty-fourth regiment. The men were all taken from the ranks of the Twenty-fourth regiment. Twenty other men in the summer of 1776 also enlisted under Lieutenant Obadiah Gore, to serve in a New York State regiment under Colonel Weisner, as well as ten more men to serve under Captain Strong. Our regiment thus lost of its most robust men, 194 in the Summer of 1776, who enlisted into the Continental Army.

While this depletion was going on the town assigned additional duties to the field officers at a meeting held August 28. "Voted ye field officers of ye regiment of this town be appointed a committee to view the most suitable places to build forts for ye defense of sd town, and determine on some particular spot or place in each district for the purpose, and mark out the same."^[23] Think for a moment of the work imposed on this Committee! Think of the large territory to be gone over, the consideration of reasons for or against any particular location. Think of the work imposed on the men who were to build the forts.



STEWART'S BLOCK HOUSE.

STEWART'S BLOCK HOUSE.

There were some old forts like Forty Fort in Kingston, and Fort Brown in Pittston, that were repaired and enlarged, but in other districts there were no suitable works of the kind and accordingly new sites were selected, and the proposed works laid out on the ground. Such was the case in Wilkes-Barre, Plymouth and Exeter. In Lower Pittston and Hanover, block houses were recommended and built. The work of repairing and building the forts ran through the years 1776, 1777 and was not completed until 1778.

Before closing the regimental history for 1776 I wish to mention the advent of the tenth company into its ranks, representing the train bands of the Districts of Huntington and Salem, of which Frethias Wall was elected Lieutenant and John Franklin, Jr., Ensign, at the October session of the legislature.^[24] I have not seen this company assigned its proper place in the regiment in any of the histories. Of this company John Franklin, Jr., was ultimately to become the Captain and Stoddart Bowen the Lieutenant.

In December, 1776, a supplement to the militia law was enacted by the Connecticut legislature, by which the age limit of those liable to serve was extended to persons from 50 to 60 years of age, and many theretofore exempt were brought into the service. These persons were to be formed into companies to be called the "Alarm List," to elect their own officers and to be attached to already existing regiments.^[25]

Under this act two companies were formed in Wyoming in 1777—one on the east side of the river, of which William Hooker Smith was elected

Captain, one on the west side of the river of which James Bidlack, Sr., was elected Captain. These became attached to the Twenty-fourth regiment.

In popular speech these old men and exempts were called "Reformadoes." Under this Act the Colonels of regiments were given authority "to assemble in martial array and put in warlike posture," the men under their command in case of invasion.

In the Spring of 1777 the regiment took up a new duty. It was the duty of sending out scouting parties.^[26] The Indians and Tories up the river were showing activity by occasionally capturing some one, and making a prisoner of him. Lieut. Asa Stevens, of the Kingston Company, went on a scouting expedition and brought in five suspected persons. Ensign John Jenkins, Jr., of the Exeter Company, led a scouting party up as far as Wyalusing, and was himself captured and three other men. Captain Asaph Whittlesey, of the Plymouth Company, led a scouting party up as far as Standing Stone. In January, 1778, Capt. Eliab Farnham, of the Lackaway Company, captured 18 tories^[27] that had been disturbing his vicinage and sent them to Hartford under the escort of Lieut. Jonathan Haskell. The legislature declared that these persons should be treated as prisoners of war. This action was necessary, because the frontiersmen held that the prisoners ought to be hanged as cattle thieves. In May, 1778, Nathan Denison memorialized the legislature to be reimbursed as Colonel of the Twenty-fourth regiment, in sending out detachments as scouts and for guards during 1776, 1777 and 1778. The prayer of his memorial was granted.^[28]

I must refer in this place to a further nominal depletion of the regiment. By act of Congress March 16, 1778, it was resolved to raise another Company of Continental troops at Westmoreland. The efforts to do this was at least partially successful and Dethic Hewit was elected Captain of the new company. In the same resolution it was provided that the new organization should be under the command of the field officers of the Twenty-fourth regiment.^[29]

The enlistment of this company reduced the strength of the regiment. It transferred the service of the men from the state to the service of the United States. It did not, however, withdraw them from the Wyoming Valley.

I will here explain the changes in the officers of the regiment. Under the militia laws of Connecticut there were two general muster days in the year—first Monday of May, first Monday of October. On either new officers could be elected to fill vacancies or for other reasons. Able and ambitious men coveted and strove to become officers of the regiment and of the companies. In the larger and stronger companies the rivalry was great and the officers were in a continual state of flux. In this way there were a large number of ex-officers. The ex-officers retained their titles by courtesy. Once a captain, always a captain. In the Wyoming histories, and upon the monument erected on the battlefield, confusion results, from giving the courtesy titles of ex-officers as much prominence as is given the titles of men who were in commission, and exercised actual command. In view of these and similar facts I have been to much pains to make the roster of those in actual command accurate as it was in the last formation of the regiment. [\[30\]](#)

I will first call attention to the changes in the regimental officers. Colonel Zebulon Butler resigned to enter the Continental service January 1, 1777. Lt. Col. Nathan Denison was promoted to be colonel. This occasioned a vacancy in the office of lieutenant-colonel, which was filled by the election of Lazarus Stewart, the famous Captain of the Paxtang Rangers, who declined to accept, and thereupon Major George Dorrance was promoted to that office in Oct., 1777. Major William Judd resigned to enter the Continental service, and his place was filled in May, 1777, by the promotion of Lieut. George Dorrance and on his elevation to the Lt. Colonelcy, Captain John Garret was elected Major in Oct., 1777. [\[31\]](#)

I have given a list of the Company officers as "established" at the organization of the regiment. They underwent many changes as heretofore indicated. I will give them as they existed in May, 1778, when the last changes were made of which there is a record. [\[32\]](#) This is a list of the Captains beginning with the first Company and thus on through to the tenth. They were as follows: James Bidlack, Jr., Aholiab Buck, Asaph Whittlesey, Jeremiah Blanchard, William McKarachan, Rezin Geer, Stephen Harding, Eliab Farnham, Robert Carr and John Franklin, Jr.

The Lieutenants were Lebbeus Tubbs, Elijah Shoemaker, Aaron Gaylord, Timothy Keyes, Roswell Franklin, Daniel Gore, Elisha Scovil, John Shaw,

Nathan Kingsbury and Stoddart Bowen.

The Ensigns were: John Comstock, Asa Gore, William White, Jeremiah Bigford, Titus Hinman, John Hagerman, John Jenkins, Jr., Elijah Winters, Rudolph Fox and Nathaniel Goss. John Jenkins, Jr., of the Exeter company, probably should not be included as he had recently been elected a lieutenant in the Continental Service. This company had no Ensign in commission.

Some of these new officers had seen service in the old French war. Lieutenant Lebbeus Tubbs had served two enlistments—one of 26 weeks in 1755, in Capt. Nicholas Bishop's company of the first Conn, regiment—another in 1759 of 27 weeks in Capt. John Pitkin's company of the Fourth Conn. Regt.^[33]

In the latter year he was in the expedition sent out for the reduction of Crown Point. Ensign William White served 35 weeks in 1756 in Capt. Samuel Champlin's Company in the First Conn, regiment. Ensign Titus Hinman in 1755 served 32 weeks in Capt. Benjamin Hinman's company in the Second Conn. regiment.

The Twenty-fourth regiment availed itself of other means of becoming efficient. Two deserters from the British army—Abraham Pike and Sergeant Boyd—were employed as drill masters, and spent much time in putting the men through their evolutions.^[34]

It had need of the skill of all its officers, of the efficiency of all its men. While I have been talking about officers, important events have been hastening toward a conclusion, on the northern border. They now claim attention. Up to this time (1778) no murders had been committed by the Indians. They now became frequent. Scouting parties of the regiment were continually going out and coming in. They heralded the approach of an invading army. Premonitory signs of its coming had not been wanting.

It consisted of about 1,100 British soldiers, Indians and Tories, under the command of Major John Butler.^[35] This force had been gathered at Kanadaseago and other points in Western New York. The time was the month of June, when nature puts on her best apparel. It approached Wyoming in boats. I can imagine the wild and weird flotilla, tricked out in barbaric splendor, as it rounded Tioga Point, and swept out into the broad waters of the Susquehanna, receiving welcome reinforcements to its

numbers as it passed Queen Esther's flats and the meadows of Sheshequin. It landed above Wyoming in Keeler's Eddy. It marched about twenty miles by land and was ready to do its work.

What was the situation at Wyoming? What the preparation to receive it? We have detailed the building of the forts; the establishment of the regiment and its depletion from time to time to recruit the Continental service. The forts were there—and the regiment—what there was of it.

We left the enemy at the head of the valley. It signified its approach by killing six men in Exeter on the 30th of June, 1778. On the first day of July it seized Fort Wintermoot. This fort was occupied by Elisha Scovil, lieutenant of the Exeter (7th) company and a few patriotic men. The Wintermoots and other non-combatants in the fort were Tories^[36] and after making the best show of resistance he could, Scovil capitulated. At Fort Jenkins, one mile above Fort Wintermoot, were eight men, including Stephen Harding, Captain of the 7th (Exeter) company. Resistance against such odds was useless and it surrendered on the second of July, although the articles of capitulation were dated on the first.^[37] This disposes of one of the companies of the Twenty-fourth regiment.

To the valley below a vague knowledge of what was happening was communicated by scouts and by persons who had escaped when the Hardings and Hadsells were killed on the 30th of June. Some information was obtained by a reconnoissance in force on the first of July.

In consequence the population gathered into the several forts on the first and second days of July.



FORTY FORT IN 1778.

Of these, Forty Fort in Kingston was the largest and the strongest. In it Col. Nathan Denison established his headquarters. He endeavored to concentrate his regiment at this point. There were many obstacles in the way. Captain Robert Carr's (9th) Up River company could not be reached because of the proximity of the enemy. According to Hollister, this Company was at Capouse Meadows (Scranton).^[38] Captain Eliab Farnham's (8th) Lackaway company was 70 miles away and could not be reached on account of the distance. This company did not learn of the invasion until it was over.^[39] Thus these two companies were unavailable. So far as adding to the force of fighting men was concerned, they did not do it. Denison sent a messenger express to Captain Franklin in Huntington, who dispatched Lieutenant Stoddart Bowen with the first of his men who could be gotten together. He sent another messenger to Wilkes-Barre. Zebulon Butler, Lt. Col. of the third regiment of the Connecticut line was then at Wilkes-Barre on furlough. Denison asked him to come to Forty Fort. When there, by common consent, he assumed command of all the forces.

Early in the afternoon of Friday, July 3d, the two Wilkes-Barre, the Hanover, Plymouth, Kingston and part of the Huntington companies were at the rendezvous mustering not more than 200 men. In addition to these were Captain Hewit's company of Continental Soldiers, some old men, young boys, and refugees from all sides, who were willing to risk their lives, but did not belong to any military organization. Perhaps 400 would be a fair estimate to put on the whole number of fighting men. On the 2d and again on the 3d day of July the enemy demanded the surrender of the Forts and all the military forces in the Valley.

What shall be done? Great uncertainty existed, as to the strength and intention of the enemy. Shall the force now in hand await the coming of promised reinforcements?—the more complete concentration of the regiment, the advance of the enemy? or shall they march out and give battle? A council of war was held in which the pros and cons were warmly debated. It was decided to give battle.

"About three o'clock in the afternoon they marched from the fort, in martial array, with the stars and stripes at their head, to the tune of Saint Patrick's Day in the Morning, played on the fife by a true son of Erin, and with drums beating."^[40] They proceeded about three miles in column when they

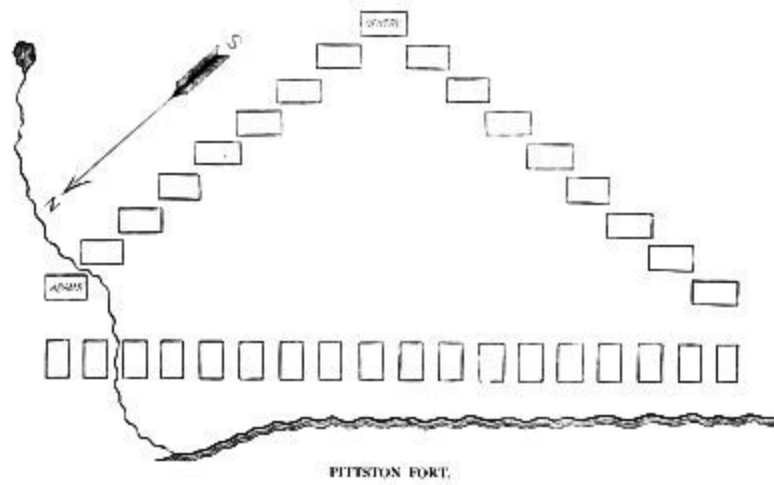
formed a line of battle of about 500 yards front. Capt. Dethic Hewit with his so-called regulars, was on the extreme right, with Captain Bidlack next to him, and he joined by Captain Geer. On the extreme left was Capt. Whittlesey and the Salem detachment under Lieut. Bowen. Next to them was the Hanover company under Captain Stewart (McKaracan having that day resigned), and he was joined by Captain Buck, of Kingston. This was the order in which the advance was made. It was made over a plain that was grown up with brush—yellow pines, pitch pines and scrub oak. These bushes could be seen over by a man, but were high enough to conceal a skulking foe. The right rested on a rise of ground near the river, and was led by Lieut. Col. Zebulon Butler, aided by Major John Garret. The left was commanded by Col. Nathan Denison, assisted by Lieut. Col. George Dorrance.

The enemy in front had the Tories in the center under Captains Pawling and Hopkins and the British regulars on their extreme left under Captain William Caldwell and Lieutenant Turney. On the enemy's right were the Indians, under cover of the alders in a swamp led by a Seneca Chief named Sayenqueraghta.^[41]

The Americans advanced with spirit, the enemy purposely falling back under fire for the distance of about a mile, until they came to a cleared field. On the opposite side of this field was a log fence which the British used as a breastwork, and from it poured in such a severe fire that it checked the advance. Just at this point the Indians with brandishing spears and demoniac yells, rushed out of the swamp on the left, in which most of them lay concealed, enveloped the left wing by superior numbers, and turned it in upon the right. In the melee that ensued an effort was made to re-form it, so that it would present a front to the enemy, but in the confusion occasioned by the fierce onset of the enemy the orders were misunderstood and the day was lost.

The men retreated in squads at first, firing as they gave ground, but borne down by overwhelming numbers, the retreat became a rout, and every man did the best he could to save himself. It was four miles back to the fort. On the way some of the squads were captured, some in pairs, some singly. The slaughter of captured men by the Indians constitutes what is known in history as the Wyoming Massacre. Some of the fugitives reached Forty Fort; some Wilkes-Barre. Lieut. Col. Zebulon Butler escaped with his life.

He and the remnant of Hewit's regulars left the valley. They did not surrender.



PITTSTON FORT.

What of the Twenty-fourth Regiment? Col. Denison reached Forty Fort alive. Lieut. Col. George Dorrance was mortally wounded. Major John Garret was killed. The Captain of every company fell upon the field, as also did three Lieutenants and three Ensigns. How many men the regiment lost it is impossible to say, but from 200 to 300 of those engaged on the American side were slain. The loss of the enemy was from 40 to 80 men.

Early the next day, July 4, the British commander sent a detachment across the river and demanded the surrender of Fort Brown, in which the Pittston people assembled, under the command of Captain Jeremiah Blanchard. The demand was complied with.^[42] It is said that this company failed to report at Forty Fort because the enemy captured all the water craft along the river in its vicinity. This disposes of one more of the companies of the Twenty-fourth Regiment.

The same day the surrender of Forty Fort was demanded on terms deemed reasonable under the circumstances. No means for further resistance were at hand. After some negotiation articles of capitulation were drawn up and signed.^[43] Protection was promised to persons and property. The fort was surrendered. Captain Franklin had come up from Huntington, while the battle was in progress on Abraham's Plains, with the remainder of his company and they were included in the surrender^[44], thus making six complete companies. I have now accounted for the ten original companies

of the regiment. Captain William Hooker Smith's company of the "Alarm List" was in the fort with the women and children at Wilkes-Barre, and Capt. James Bidlack, Sr.'s company was in the fort on Garrison Hill in Plymouth. These "Reformadoes" belonged to Col. Denison's command.

The victors planned a spectacular entrance into Forty Fort. Massed in columns of four upon the left, approached Major John Butler at the head of his Rangers and Royal Greens; on the right came the Seneca Chiefs, leading their warriors, streaked with paint, adorned with feathers, and other picturesque barbaric ornaments. They were preceded with waving banners, the screech of fife, and the roll of drums. At a signal the gates were opened: in at the north gate entered the Tories and British Provincials; at the south gate the savages. ^[45]

This scene as it came down to me when a child, from the reported words of a great grandmother who witnessed it, most profoundly impressed my youthful imagination.

What occurred after the capitulation? By the terms of the surrender protection was promised to persons and property. Regardless of the terms, the Indians plundered individuals of the clothing on their persons, pillaged the farmsteads of everything movable, drove away the live stock, destroyed the growing crops and burned the buildings of the distressed inhabitants to the ground. Their commander could not, or would not restrain them.

The result was that on the night following the battle, and on the two or three succeeding days and nights, the 3,000 inhabitants of the Wyoming Valley fled, some by boats and rafts down the river, but by far the greater number through the wilderness, and over the mountains to the settlements beyond. It was not a planned and orderly hegira, in which provision was made for necessary wants, but a hurried, hasty, precipitate flight, urged on to desperation by every element of real and imaginary danger. Their houses, furniture, household utensils, crops, flocks, farming implements, provisions, papers, clothing, horses, wagons,—all left behind. And it was all utterly destroyed or carried off. Of the delicate women and tender children, not less than 200 perished by the way. In the battle, the massacre, and the flight it is probable that 500 persons lost their lives. In a memorial to the Connecticut legislature, the survivors stated that their property losses amounted to 38,308 pounds, 13s. ^[46]

In the Articles of Capitulation signed at Forty Fort was this: "Art. 7. That the inhabitants Col. Denison capitulates for, together with himself, do not take up arms during the present contest." Some undoubtedly considered themselves bound by this article. Colonel Denison for one is no longer heard of in our military annals, although Westmoreland remained more than four years longer under the jurisdiction of Connecticut. The Twenty-fourth regiment was never reorganized. It was overwhelmed on the field of battle; it was surrendered in sections, by the terms of four military conventions.^[47] Of this sort of glory it had a monopoly. As a regiment its story is told.

On the other hand many of the men considered themselves absolved from the terms above recited. The party that imposed the conditions, did not themselves observe them. Lieut. Col. Zebulon Butler, one month from the day of surrender, returned to the valley at the head of some Continental soldiers and 40 militiamen and went into garrison at Wilkes-Barre. A muster roll of these men is extant. Many of them were men who had been surrendered. Captain John Franklin, with a company of Wyoming militia, went out in Hartley's expedition the same year, and in Sullivan's expedition the next year, and on other occasions.

In an upper chamber of this building is an original pay roll of one of these companies. Many of its names are identical with those who served in the Twenty-fourth regiment.

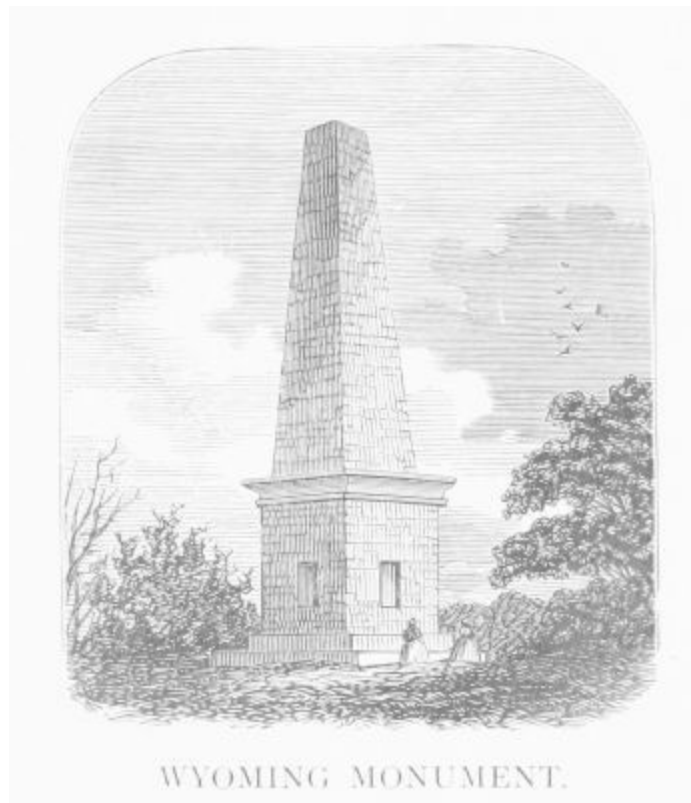
After the flight of the people from the valley the dead lay unburied on the plain where they fell for nearly four months. On the twenty second day of October a detail of thirty men was sent from the garrison at Wilkes-Barre as a guard to protect those of the inhabitants that had returned, in performing that solemn duty.^[48]

A granite monument suitably inscribed now marks the place of sepulchre. Engraved upon it is a very inaccurate list of those "slain in battle" and of "survivors."

In this temple, dedicated to the Muse of the backward look, it may be appropriate to inquire, What relation, if any, had these events to the history of the times? The drama of the American Revolution held the center of the stage. Did our regiment enact a part? An important part. It triumphed mightily in its death. The tales of the butchery of these captured citizen soldiers, the cries of those mothers and little children, driven from their

burning homes to the wilds of the forest, were heard all over the civilized world. The execration of mankind was visited upon a King, and a country, that employed savage allies and paid them ten dollars apiece, in gold, for the scalps of human beings.

It produced another effect. It called the attention of Washington and the Congress to the imperative necessity of dealing a death blow, to the Six Nation Confederacy of Indian barbarians. A year passed by. The avengers of Wyoming darkened the waters that wash the shores of your beautiful peninsula-they swarmed over the lands where we are assembled to-night, they went forward, they did the work assigned them; Wyoming was avenged.



WYOMING MONUMENT.

Permit me a word of review.

The Connecticut controversy! with all its bitterness and contention, it is sunk in oblivion.

The town of Westmoreland! it is sponged from the map.

The Twenty-fourth regiment! it served three years—one for the colony, two for the state. It builded forts, it fought battles, it went down to defeat and death, amidst a wild saturnalia of blood, rapine, and murder. It is forgotten.

"Time rolls its ceaseless course; the race of yore.
 Who danced our infancy upon their knee.
 And told our marvelling boyhood legends store
 Of their strange ventures happ'd by land or sea,
 How are they blotted from the things that be!"



Appendix A.

ROSTER OF THE OFFICERS OF THE TWENTY-FOURTH REGIMENT CONNECTICUT MILITIA

From Date of Its Organization to Day of Its Destruction. Date of
 Commission Follows Each Name.

COLONEL.	Zebulon Butler	May, 1775
"	Nathan Denison	May, 1777
LIEUT.- COLONEL.	Nathan Denison	May, 1775
" "	Lazarus Stewart	May, 1777
" "	George Dorrance	Oct., 1777

	MAJOR.		William Judd	May, 1775		
	"		George Dorrance	May, 1777		
	"		John Garret	Oct., 1777		
	CAPTAINS.		LIEUTENANTS.		ENSIGNS.	
<i>First, or Lower Wilkes- Barre Comp'y.</i>	Stephen Fuller	Oct., 1775	John Garret	Oct., 1775	Charles Avery	Oct., 1775
	John Garret	Oct., 1776	Asa Stevens	Oct., 1776	David Downing	Oct., 1776
	Elisha Swift	May, 1777	James Bidlack, Jr.	May, 1777	Lebbeus Tubbs	Oct., 1777
	James Bidlack, Jr.	Oct., 1777	Lebbeus Tubbs	Oct., 1777	John Comstock	Oct., 1777
<i>Second, or Kingston Company.</i>	Nathaniel Landon	Oct., 1775	George Dorrance	Oct., 1775	Asahel Buck	Oct., 1775
	Wm. Hooker Smith	May, 1777	Flavius Waterman	May, 1777	Dethic Hewit	Oct., 1776
	Dethic Hewit	Oct., 1777	Aholiab Buck	Oct., 1777	Elisha Blackman	May, 1777
	Aholiab Buck	May, 1778	Elijah Shoemaker	May, 1778	Asa Gore	Oct., 1777
<i>Third, or Plymouth Company.</i>	Samuel Ransom	Oct., 1775	Perrin Ross	Oct., 1775	Asaph Whittlesey	Oct., 1775
	Asaph Whittlesey	May, 1777	Aaron Gaylord	May, 1777	William White	May, 1777
<i>Fourth, or Pittston Company.</i>	Solomon Strong	Oct., 1775	Jonathan Parker	Oct., 1775	Timothy Keyes	Oct., 1775
	Jeremiah Blanchard	May, 1777	Timothy Keyes	May, 1777	William Shays	May, 1777
					Jeremiah Bigford	May, 1778

<i>Fifth, or Hanover Company.</i>	Wm. McKarrican	Oct., 1775	Lazarus Stewart, Jr.	Oct., 1775	Silas Gore	Oct., 1775
			Roswell Franklin	May, 1777	Titus Hinman	May, 1777
<i>Sixth, or Upper Wilkes- Barre Company.</i>	Rezin Geer	Oct., 1775	Daniel Gore	Oct., 1775	John Hagerman	Oct., 1775
<i>Seventh, or Exeter Company.</i>	Stephen Harding	Oct., 1775	Elisha Scovil	Oct., 1775	John Jenkins, Jr.	Oct., 1775
<i>Eighth, or Lackaway Company.</i>	Eliab Farnham	Oct., 1775	John Shaw	Oct., 1775	Elijah Winters	Oct., 1775
<i>Ninth, or Up River Company.</i>	James Seacord	Oct., 1775	John Depue	Oct., 1775	Rudolph Fox	Oct., 1775
	Robert Carr	May, 1776	Nathan Kingsley	May, 1776		
<i>Tenth, or Huntington- Salem Company.</i>	John Franklin	May, 1778	Frethias Wall	Oct., 1776	John Franklin	Oct., 1776
			Stoddart Bowen	May, 1778	Nathaniel Goss	May, 1778

APPENDIX B.

A bill of Losses sustained by the Inhabitants of Westmoreland from the 3d day of July, 1778, to May, 1780, taken and carefully examined by the Selectmen of sd Town pursuant to a Resolve of the Assembly of the state of Connecticut holden at Hartford the second Thursday of May, 1780.

And is as followeth:

			£ s.
Sam'l Andross,	26 15	John Jenneson,	88 11

Isaac Adams,	103 14	Crocker Jones,	9 0
Richardson Avery,	155 00	Wm. Jacobson,	106 1
Alice Abbot,	173 6	Robert Jamison,	183 16
Prince Alden,	83 17	Capt. Wm. Judd,	19 2
Mason F. Alden,	5 13	John Jenkins, Esq.,	598 1
Noah Adams,	83 5	Josiah Kellogg,	146 12
Cornelius Atherton,	103 0	Michael Kelly,	21 11
Samuel Ayers,	100 10	Benj. Kilburn,	92 16
James Atherton,	120 0	Hanna Keys,	178 14
Richardson Avery, Jr.,	137 13	Alexander M. Kay,	277 4
Eber Adros,	120 9	Sarah Lee,	236 6
Col. Zebulon Butler,	429 4	Thomas Levenworth,	122 11
Zerah Beach,	67 13	Sarah Leonard,	75 0
Ishmael Bennet,	96 17	Rufus Lawrence,	189 11
Isaac Bennet,	61 7	Daniel Lawrence,	37 0
Asa Bennet,	199 12	George Liquors,	136 18

Henry Burney,	71 15	Abigail Leech,	82 0
Moses Brown,	13 8	Joseph Leonard,	79 19
Andrew Blanchard,	49 15	John Lashley,	53 2
John Blanchard,	23 8	David Lindsey,	78 7
Joseph Blanchard,	54 9	Edward Lester,	109 11
Margaret Blanchard,	79 2	Samuel Morgan,	153 8
Lucretia Buck,	90 14	John Murphy,	86 3
James Benedict,	228 13	Benj. Murry,	78 2
Jeremiah Blanchard,	215 14	Ebenezer Murry,	118 12
Benjamin Bailey,	134 17	Uzania Manvill,	46 17
Asahel Burnham,	35 6	Thomas Neil,	4 0
Isaac Benjamin,	9 0	James Nesbit,	74 19
Thomas Brown,	61 0	Phinehas Nash,	70 0
Thomas Bennet,	507 0	John O'Neil,	18 2
James Brown,	165 4	David Owen,	24 0
Capt. James Bidlack,	65 19	Amos Ormsby,	7 1
Sarah Brockway,	205 7	Anning Owen,	174 12

Joseph Baker,	124 13	Josiah Pell,	73 10
Elisha Blackman,	137 1	Lucy Pettibone,	79 9
Elizabeth Benedict,	144 13	Hannah Parish,	44 12
Bertha Bixby,	36 13	Thomas Picket,	111 11
James Bagley,	95 15	Hannah Pierce,	151 6
Mary Bixby,	74 8	Thos. Picket, Jr.,	66 0
Capt. Caleb Bates,	285 4	Ichabod Phelps,	93 2
Wm. Buck,	245 5	Thos. Porter,	200 0
Elijah Buck,	103 18	Josiah Parks,	49 19
Abigail Bidlack,	63 10	Noah Pettibone,	216 1
David Brown,	28 16	Jonathan Pritchard,	30 15
Richard Brockway,	163 17	Jonathan Parker,	54 12
Mehitable Bigford,	202 1	Silas Parks, Esq.,	91 10
Uriah Chapman, Esq.,	58 10	Elijah Phelps,	550 10
Samuel Cummings,	151 5	Sarah Pixley,	26 19
John Cray,	93 10	John Ryon	18 3
Wm. Churchill,	178 10	Wm. Ross,	326 0

Anne Campbell,	100	5	John Ross,	65	17
Nathan Cary,	160	4	Susannah Reynolds,	28	10
Benjamin Cole, Jr.,	165	0	Peran Ross,	233	9
James Cole,	207	3	Abigail Richards,	135	3
Peleg Comstock,	40	13	David Reynolds,	94	2
Mary Crooker,	51	1	Capt. Samuel Ransom,	259	0
John Comstock,	219	7	Capt. Daniel Rosencrans,	175	10
Jonathan Cory,	173	11	James Roberts,	83	18
Jinks Cory,	83	0	Jonah Rogers,	168	17
Thos McCluer,	66	4	Amasa Roberts,	92	10
Barnabas Cary,	88	17	Timothy Rose,	118	11
Samuel Cole,	89	6	Caleb Spencer,	182	17
Preserved Cooley,	95	19	Margaret Smith,	155	10
Col. Nathan Denison,	209	15	James Stark,	547	15
Samuel Downer,	22	19	Lazarus Stuart, Jr.,	172	12
Daniel Downing,	107	0	Isaac Smith,	67	10

David Darling,	13	0	Joseph Staples,	223	0
Sarah Durkee,	240	18	Esther Spencer,	135	0
Amos Draper,	68	18	David Sanford,	193	12
Samuel Dart,	124	4	Elizabeth St. John,	162	0
Anderson Dana, Esq.,	194	15	Elisha Scovil,	712	4
Frederick Eveland,	90	6	Jonathan Scovil,	72	0
Samuel Ensign,	38	10	Ebenezer Skinner,	89	4
Joseph Elliott,	33	17	Wm. Shay,	114	15
Henry Elliott,	44	14	Josiah Smith,	83	19
Benjamin Eaton,	369	10	Obadiah Scott,	72	15
Nathaniel Evans,	61	19	Jedediah Stevens,	285	0
Capt. Stephen Fuller,	288	4	Joshua Stevens,	119	11
Roswell Franklin,	104	0	Zacharias Squire,	66	16
Charles Forsythe,	15	3	James Sutton,	176	17
Capt. John Franklin,	21	4	David Shoemaker,	50	0
Benj. Follet,	118	17	Daniel Sherwood,	40	4

Jabez Fish,	223	0	Edward Spencer, Jr.,	85	7
John Ferre, Jr.,	61	11	Thomas Stoddard,	200	8
Hugh Foresman,	193	11	David Smith,	202	15
Sarah Fuller,	101	13	Jane Shoemaker,	329	12
Esther Follet,	221	7	Benj. Skiff,	98	7
James Finn,	221	11	Wm. Hooker Smith,	168	7
Richard Fitz Jarold,	245	2	Wm. Stuart,	57	17
Elizabeth Follet,	212	3	Giles Slocum,	205	19
Jonathan Forsythe,	138	16	Asa Stevens,	185	11
Jonathan Fitch,	46	10	John Scott,	217	3
Capt. Eliab. Farnham,	27	11	James Staples,	80	19
Joanna Fish,	30	17	Martha Stuart,	481	12
Major John Garret,	309	11	Jabez Sill,	351	19
Hannah Gore,			John Staples,	224	12
John Garret, Jr.,	59	16	John Stafford,	36	6
Daniel Gore,	273	13	Josiah Stanberry,	603	14
Cornelius Gale,	7	14	Luke Sweatland,	200	0

William Gallop,	200	0	Joseph Thomas,	120	18
Solomon Goss,	31	11	Mary Thomas,	25	0
Justin Gaylord,	134	14	Ephraim Tyler,	14	10
Keziah Gore,	89	0	Parshall Terry,	216	12
Obadiah Gore, Esq.,	306	1	Mary Thompson,	30	10
Elisha Garret,	29	0	Job Tripp,	113	1
Catherine Gaylord,	158	4	Isaac Tripp,	74	10
Joseph Gaylord,	69	6	Lebbeus Tubbs,	130	3
Stephen Gardner,	176	18	John Taylor,	61	14
Nathaniel Gates,	66	14	Preserved Taylor,	18	2
James Gardner,	180	0	Mehitable Truks,	159	4
Elizabeth Gore,	240	0	Moses Thomas,	68	3
Wait Garret,	108	6	Bezaleel Tyler,	35	17
Bezaleel Gurney,	59	6	Elizabeth Tuttle,	67	10
John Hurlburt, Esq.,	85	7	James Towser,	36	0
Peter Harris,	149	16	Isaac Van Orman,	122	0

Richard Hoisted,	177 6	John Van Titbury,	84 3
Lebbeus Hammond,	84 18	Rev. Noah Wadhams,	193 6
Joseph Hagaman,	19 0	Amy Wilcox,	116 12
Henry Harding,	55 12	Elizabeth Wilcox,	87 15
Matthew Hollenback,	671 3	Enos Woddard,	30 19
Dr. Joseph Hamilton,	284 17	Enos Woddard, Jr.,	16 7
James Hopkins,	90 6	Eleazer West,	53 10
Capt. Robt. Hopkins,	28 18	Nathaniel Williams,	30 0
Samuel Huchinson,	163 9	Abigail Weeks,	129 16
Simon Hide,	117 17	Mary Walker,	42 5
Widow Hasen and son,	182 10	Eunice Whiton,	26 7
Samuel Howard,	27 15	Daniel Willing,	44 17
Mary Howard,	50 1	Thomas Wigton,	175 6
Benjamin Hervy,	186 0	Isabel Wigton,	130 1
Mary Hatch,	12 7	Wm. Warner,	68 16
John Hutchins,	57 1	Wm. Williams,	148 18

Capt. Stephen Harding,	181 19	Jonathan Weeks,	239 11
Stukely Harding,	73 6	Flavius Waterman,	90 0
James Headsall,	210 0	Elihu Williams,	197 10
Thos. Heath,	190 0	Richard West,	65 17
Cyprian Hybert,	119 13	Amy Williams,	130 0
Daniel Ingersol,	208 2	Daniel Whitney,	363 14
Sarah Inman,	161 10	Abraham Westbrook,	380 2
Richard Inman,	41 17	James Wells,	92 12
Edward Inman,	84 6	Lucretia York,	221 13
Rev. Jacob Johnson,	459 1	Jemima Yale,	130 3
		Jacob Zaratt,	42 11
		Total amount,	£38,308 13

The foregoing Bill was carefully examined in each single account and estimated in lawful money equal to money in 1774.

Westmoreland, Oct. 2, 1781.

In the Lower House, Ordered that this Report be Lodged on file in the Secretary's Office.

Teste—Jed'h Strong, Clerk.

Concur'd in the Upper House.

Teste—George Wyllys, Sect'y.



APPENDIX C.

Copies of Documents Relative to the Expedition Against Wyoming, in 1778, Now in His Majesty's State Paper Office, London, in a Volume Entitled, "Military, 1778.—No. 122."

I.

Copy of Articles of Capitulation, for Wintermoot's Fort, July 1, 1778.

Art. 1st. That Lieut. Elisha Scovell surrender the Fort, with the Stores, arms and ammunition, that are in said fort, as well public as private, to Major John Butler.

2d. That the garrison shall not bear arms during the present contest; and Major Butler promises that the men, women and children shall not be hurt, either by Indians or Rangers.

II.

FORT JENKINS FORT, July 1st, 1778.

Between Major John Butler, on behalf of His Majesty King George the Third, and John Jenkins.

Art. 1st. That the Fort with all the stores, arms and ammunition, be delivered up immediately.

2d. That Major John Butler shall preserve to them, intire, the lives of the men, women and children.

III.

Articles of Capitulation for three Forts at Lackuwanack, 4th July, 1778.

Art. 1st. That the different Commanders of the said Forts, do immediately deliver them up, with all the arms, ammunition and stores in the said forts.

2d. Major Butler promises that the lives of the men, women and children shall be preserved intire.

IV.

WESTMORELAND, July 4th, 1778.

Capitulation made and completed between Major John Butler, on behalf of His Majesty King George the Third, and Col. Nathan Denniston, of the United States of America.

Art. 1. That the inhabitants of the settlement lay down their arms, and the garrisons be demolished.

2d. That the inhabitants are to occupy their farms peaceably, and the lives of the inhabitants preserved intire and unhurt.

3d. That the Continental Stores be delivered up.

4th. That Major Butler will use his utmost influence that the private property of the inhabitants shall be preserved intire to them.

5th. That the prisoners in Forty Fort, be delivered up, and that Samuel Finch, now in Major Butler's possession, be delivered up also.

6th. That the property taken from the people called Tories, up the river, be made good; and they to remain in peaceable possession of their farms, unmolested in a free trade, in and throughout this State, as far as lies in my power.

7th. That the inhabitants, that Colonel Denniston now capitulates for, together with himself, do not take up arms during the present contest.

[Signed]

NATHAN DENNISTON.
JOHN BUTLER.

Zarah Beech,
John Johnson,
Samuel Gustin,
Wm. Caldwell.



BIBLIOGRAPHY.

Below will be found a list of the books, pamphlets, and manuscripts consulted in the preparation of this address. By means of an alphabetical arrangement, usually as to author's names, an authority cited in the text may here be found with the title of the work, and the date, and place of publication.

CHAPMAN, ISAAC A.—A sketch of the History of Wyoming. Wilkes-Barre. 1830.

CONOVER, GEORGE S.—Sayenqueraghta, King of the Senecas. Waterloo. 1885.

Supplement to the same. 1886.

CONNECTICUT—The Public Records of the Colony of.—From October, 1772, to April, 1775, inclusive. Vol. XIV. Hartford. 1887.

CONNECTICUT—The Public Records of the Colony of.—From May, 1775, to June, 1776, inclusive. Vol. XV. Hartford. 1890.

CONNECTICUT—The Public Records of the State of.—From October, 1776, to February, 1778, inclusive. Vol. I. Hartford. 1894.

CONNECTICUT—The Public Records of the State of. From May, 1778, to April, 1780, inclusive. Vol. II. Hartford. 1895.

CONNECTICUT.—Record of Service of Connecticut Men in the War of the Revolution. Quarto, pp. 777. Hartford. 1889.

CRAFT, REV. DAVID.—Historical Address at the Centennial Celebration of the Battle of Newtown. Printed in Journals of the Sullivan Expedition.

CRAFT, REV. DAVID.—Colonel John Franklin and the Wild Yankees. An Address delivered June 9, 1896, at the Old Academy, Athens, Pa. 1896.

EGLÉ, WM. H., M. D.—A History of the Commonwealth of Pennsylvania, Civil, Political and Military, from its earliest settlement to the present time. Harrisburg. 1876.

HUBBARD, JOHN N., A. B.—Sketches of Border Adventures in the Life and Times of Major Moses VanCampen, a Surviving Soldier of the Revolution. By his Grandson. Bath, N. Y. 1842.

HAYDEN, REV. HORACE EDWIN, M. A.—Major John Garret, slain July 3, 1778. A Forgotten Hero of the Massacre of Wyoming, Pa. Wilkes-Barre, Pa. 1895.

HAYDEN, REV. HORACE EDWIN, M. A.—The Massacre of Wyoming. Wilkes-Barre. 1895.

HOLLISTER, HORACE.—History of the Lackawana Valley, Fifth Edition. Philadelphia. 1885.

HOYT, HENRY M.—A Brief of the Title in the Seventeen Townships in the County of Luzerne: A Syllabus of the Controversy between Connecticut and Pennsylvania. Harrisburg. 1879.

HINMAN, ROYAL R.—A Historical Collection from Official Records, Files, etc., of the part sustained by Connecticut during the War of the Revolution. Hartford. 1842.

HARVEY, OSCAR JEWELL.—The Harvey Book, giving genealogies of Harvey, Nesbitt, Dixon and Jamison Families. Wilkes-Barre, Pa. 1899.

JENKINS, STEUBEN.—Historical Address at the Wyoming Monument July 3, 1878, on the 100th Anniversary of the Battle and Massacre of

Wyoming. Wilkes-Barre. 1878.

JENKINS, STEUBEN.—Wyoming, Connecticut, Pennsylvania. Historical Register. Vol. II. Harrisburg. 1884.

JOHNSON, FREDERICK C., M. D.—The Pioneer Women of Wyoming. An Address before the Wyoming Valley Chapter D. A. R. Wilkes-Barre. 1901.

MEGINNESS, JOHN F.—Biography of Frances Slocum, the lost Sister of Wyoming. A complete Narrative of her wanderings among the Indians. Williamsport, Pa. 1891.

MINER, CHARLES.—History of Wyoming in a Series of Letters. Philadelphia. 1845.

MILITARY EXPEDITION of General John Sullivan, Journals of. Auburn. 1887.

PECK, GEORGE, D. D.—Wyoming; its History, Stirring Incidents and Romantic Adventures. New York. 1858.

PEARCE, STEWART.—Annals of Luzerne County. Second Edition. Philadelphia. 1866.

PENNSYLVANIA—Minutes of the Provincial Council of.—From the organization to the termination of the Proprietary Government. Vols. IX to XI. Harrisburg. 1853.

PENNSYLVANIA—Minutes of the Supreme Executive Council of.—From its organization to the termination of the Revolution. Vols. XI to XVI. Harrisburg. 1853.

PENNSYLVANIA ARCHIVES.—Selected and arranged from Original Documents in the Office of the Secretary of the Commonwealth. First Series. Vols. IV. to XII. Harrisburg. 1855-8. Second Series. Vol. XVIII. Harrisburg. 1897. Fourth Series. Vols. III. and IV. Harrisburg. 1900.

PERKINS, MRS. GEORGE A.—Early Times on the Susquehanna. Binghamton. 1870.

PLUMB, HENRY BLACKMAN.—History of Hanover Township and Wyoming Valley, Luzerne County, Pa. Wilkes-Barre, Pa. 1885.

REYNOLDS, SHELDON, M. A.—The Frontier Forts within the Wyoming Valley, Pa. Wilkes-Barre. 1896. Also in Frontier Forts of Pa. Vol. I, pp. 419-466. Harrisburg. 1896.

STONE, WILLIAM L.—The Poetry and History of Wyoming. New York and London. 1841.

STONE, WILLIAM L.—Life of Joseph Brant—Thayendanegea, including the Indian Wars of the American Revolution. Vol. I. Cooperstown, N. Y. 1844.

UNITED STATES.—Journals of Congress. Containing their Proceedings from Sept. 5, 1774, to November 3, 1788. 13 volumes. Philadelphia. 1800-1.

WRIGHT, HENDRICK B.—Historical Sketches of Plymouth, Luzerne County, Pa. Philadelphia. 1873.

WYOMING VALLEY—The Historical Record of. A periodical publication. Dr. F. C. Johnson, Editor. 9 volumes. Wilkes-Barre. 1886-1901.

WYOMING HISTORICAL AND GEOLOGICAL SOCIETY—Proceedings and Collections. Vols. 1-7. Wilkes-Barre. 1858-1902.

WYOMING COMMEMORATIVE ASSOCIATION—Proceedings. 12 volumes. Wilkes-Barre. 1878-1902.

MANUSCRIPTS.

The subjoined list embraces material not in printed form:

CRAFT, REV. DAVID.—Collection of MSS. deposited by him in the Rooms of the Tioga Point Historical Society, Athens, Pa.

CONNECTICUT STATE LIBRARY.—Manuscript Pay and Muster Rolls of Soldiers in the French and Indian War, 1754-1763. Hartford, Conn.

Appendix "B" is Document No. 147 in a manuscript volume entitled "Susquehanna Settlers," Vol. I.

JENKINS, HON. STEUBEN.—Documents, Letters, Surveys, Account Books, Agreements, Diaries, etc. etc. Wyoming, Pa. Examined in

lifetime of late owner.

TIOGA POINT HISTORICAL SOCIETY.—Pay Roll of Capt. John Franklin's Company, dated May, 1780. Athens, Pa.



FOOTNOTES:

- [1] Westmoreland Records as per Hollister 5th ed. p. 139.
- [2] Westmoreland Records as per Hollister 5th ed. p. 140.
- [3] Colonial Records of Conn. Vol. XIV p. —.
- [4] Miner p. 157.
- [5] Miner p. 158.
- [6] Colonial Records of Conn. Vol. XV p. 12.
- [7] Colonial Records of Conn. Vol. XV p. 43.
- [8] Manuscript Pay Rolls Conn. State Library.
- [9] Miner p. 154.
- [10] Colonial Records of Conn. Vol. XV p. 152 et seq.
- [11] Manuscript Pay and Muster Rolls Conn. State Lib.
- [12] Hinman's Connecticut in the War of the Revolution, (1842) p. 10.
- [13] Mason F. Alden is employed to perform a responsible duty and is called Ensign. However, his name does not appear among the Ensigns of the Twenty-fourth regiment, at that time but recently elected. Perhaps it was a courtesy title derived from some previous service.
- [14] Lazarus Stewart was also employed to perform a responsible duty and is called Captain. He served during the French and Indian War; was in Braddock's defeat; was Captain of the "Paxtang Boys," but was not at this time a Captain in the Twenty-fourth regiment. He was a cousin of Lazarus Stewart, Jr., a Lieutenant in the Hanover company.
- [15] Miner, p. 172 et seq.; The Harvey Book, p. 628 et seq.
- [16] Miner, p. 189.
- [17] Westmoreland Records as per Jenkins' Address p. 11.
- [18] Miner p. 212.

- [19] Colonial Records of Conn. Vol. XV p. 470.
- [20] Miner p. 187.
- [21] Journals of Continental Congress Vol. III p. 104.
- [22] Journals of Continental Congress Vol. II p. 307.
- [23] Frontier Forts of Pa. Vol. I p. 434.
- [24] Records of the State of Conn. Vol. I p. 31.
- [25] Records of the State of Conn. Vol. I p. 91 et seq.
- [26] Miner p. 200.
- [27] Names of fifteen of these Tories are given in Records of State of Conn. Vol. I p. 539.
- [28] Records State of Conn. Vol. II p. 58.
- [29] Journals of Continental Congress Vol. IV p. 113.
- [30] See Appendix A.
- [31] Records of the State of Conn. Vol. I, pp. 264, 430.
- [32] Records of the State of Conn. Vol. I, pp. 270, 422; Vol. II, p. 30.
- [33] Manuscript Pay and Muster Rolls Conn. State Lib.
- [34] Miner, p. 215.
- [35] Miner, p. 216.
- [36] Miner, p. 218.
- [37] For Articles of Capitulation see Miner p. 255, and Appendix C.
- [38] Hollister 5th ed., p. 163, 194.
- [39] Miner p. 470.
- [40] Address of Hon. Steuben Jenkins, p. 38.
- [41] The Wyoming Massacre, by Horace Edwin Hayden, (1895) p. xviii et seq.
- [42] Articles of Capitulation given by Miner p. 255.
- [43] Articles of Capitulation given by Miner p. 255.
- [44] Col. John Franklin and the Wild Yankees, by Rev. David Craft, p. 7.
- [45] Miner p. 232.
- [46] See Appendix B.
- [47] See Appendix C.
- [48] Orderly Book of Col. Z. Butler in Proc. Wyo. Hist. Soc. Vol. VII p. 124.

*** END OF THE PROJECT GUTENBERG EBOOK THE WYOMING
MILITARY ESTABLISHMENT. A HISTORY OF THE TWENTY-
FOURTH REGIMENT OF CONNECTICUT MILITIA ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.